Appendix B
(Clause C5 of *additional conditions of contract*)

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

(i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. the ACC for **Limiting the Tiers of Subcontracting**).

(ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

(iii) The *Contractor*'s approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) report upwards his/their subcontracting arrangement and any subsequent changes with written declarations of no "hidden" subcontracts for any part of the *works* subcontracted to any of them.

(iv) The *Contractor*'s proposed measures for supervision of the works and monitoring of the performance of subcontractors, particularly the aspects of the works programming, quality and safety of the works and environmental protection.

(v) The *Contractor*'s proposed measures for monitoring the performance of the subcontractors in complying with the requirements in the contract in reporting site accidents.

(vi) The *Contractor*'s approach to ensure all subcontractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.

(vii) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

(viii) The *Contractor*'s approach to ensure all his subcontractor(s) (irrespective of tiers) to adopt written contracts in his/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in the Contract (i.e. ACC for **Subcontract conditions**) and incorporate the **Mandatory Subcontract Conditions for Security of Payment** and SOP Provisions for Relevant Subcontracts in the form appearing in Appendix O of the *additional conditions of contract*.

(ix) Details of the *Contractor*'s Management Team, as required in the Contract (i.e. the ACC for ***Contractor*'s Management Team**), employed on direct supervision and management of subcontractor(s). An organization chart showing the responsibilities of the *Contractor*'s direct staff in supervision and management of his subcontractor(s) shall be submitted.

(x) Declaration through the standard declaration form that members of staff on the *Contractor*'s Management Team are prohibited to be given a subcontract to any part of the *works* or to have a vested interest in any of the subcontractors irrespective of tiers.

(xi) The *Contractor*'s proposed measures to ensure the compliance with the implementation of the system of payment of wages to the Site Workers as stipulated in the Contract (i.e. ACC for **Payment of Wages of Site Workers**). The *Contractor*'s proposed measures for ensuring timely payments to subcontractor(s) and payments by subcontractor(s) to subcontractor(s) of lower tiers.

[NB. The above items are not exhaustive. The Contractor can add any other items, which he considers pertinent to the proper management of his subcontractor(s).]

Standard Declaration Form by the *Contractor*
on Compliance with Provisions in
Subcontractor Management Plan

To: The *Project Manager*

Contract No. : _____

Contract Title : _____

In accordance with the Guidelines on Scope and Contents of Subcontractor Management Plan referred in ACC C5, I / we declare and confirm that we have complied with and undertake to continue to comply with the following provisions, and declare and confirm that I / we have ensured and undertake to continue to ensure that our members of staff on the *Contractor*'s Management Team as referred in ACC D1 are aware of the following provisions:

(a) Members of staff on the *Contractor*'s Management Team are prohibited from being given a subcontract to any part of the *works* or having a vested interest in any of the subcontractors irrespective of tiers;

(b) Members of staff on the *Contractor*'s Management Team are required to submit written declarations to the *Project Manager* upon his / her written request from time to time or at any time that they do not have a subcontract to any part of the *works* or any vested interest in any of the subcontractors irrespective of tiers.

(Name of the *Contractor*) _____

(Name of the Signatory) _____

(Position of the Signatory) _____

(Date) _____

Table 1 - Particulars of Subcontracts[1]

No.	Contract No.	Contract Title	Contract Sum ($)	Contact Point	Company Name of Subcontractor	Commencement Date	Program	No. of Tier	Form of Subcontractor	Type[2] (RSTC or RS)	Trade[3]	Specialty[3] (NA for RSTC)	Registration No.	Expiry Date	Value[4]	Grouping[5] (1, 2 or NA)
e.g.	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	ABC Company Ltd.	1-10-2020	9 months	1	labour, plant & material	RSTC	Concreting Formwork	NA	XXXXXX	31-3-2022	E	1
	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	123 Company Ltd.	1-10-2020	12 months	2	labout & plant	RS	Fire Services Installation	Fire services pipe work	XXXXXX	31-3-2022	D	NA
1																
2																

Notes:

(1) Apart from the above information, the *Contractor* shall provide additional information and supporting document upon requested.

(2) RSTC refers to the Registered Specialist Trade Contractors under the Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council (CIC).
RS refers to the Registered Subcontractors under the RSTCS.

(3) One row for one particular trade or specialty. Subcontract with multiple trades or specialities shall be reported individually in several rows. For details of the classification of trade and specialty, please refer to the website of the RSTCS at www.rstc.cic.hk managed by the CIC.
RSTCS covers 8 designated trade groups, viz. (1) Concreting, (2) Concreting Formwork, (3) Curtain Wall, (4) Demolition, (5) Erection of Concrete Precast Component, (6) Reinfocement Bar Fixing, (7) Scaffolding, and (8) Plastering.

(4) One value for one particular trade group and specialty. The ranges of Value A to G are shown below:
A: Value < $1M
B: $1M ≤ Value < $3M
C: $3M ≤ Value < $6M
D: $6M ≤ Value < $15M
E: $15M ≤ Value < $30M
F: $30M ≤ Value < $50M
G: Value ≥ $50M

(5) Group 1 and Group 2 refer to the tender limits set by CIC for the 8 designed trades mentioned in (3) above, which are only applicable to RSTC. For details of the tender limits, please refer to the website of the RSTCS at www.rstc.cic.hk managed by the CIC.

Internal Note:

Insert appropriate reference

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